

Information taken from DAF-Contracting-Compass 17 April 2027

(<https://usaf.dps.mil/sites/AFCC/AQCP/KnowledgeCenter/SitePages/DAF-Contracting-Compass.aspx>)

The following are the old DAFFARS Clauses/Provisions. Since there is no more DAFFARS, the following are identified on the Compass page and need to be included in the solicitation, Award and/or PWS per DAF guidance on the above site. This is just the narrative from DAF-Contracting-Compass, COs need to validate if it is mandatory, required for their requirement and tailor to your specific requirements.

Ombudsman

1. An ombudsman has been appointed to hear and facilitate the resolution of concerns from offerors, potential offerors, and others for this acquisition. When requested, the ombudsman will maintain strict confidentiality as to the source of the concern. The existence of the ombudsman does not affect the authority of the program manager, contracting officer, or source selection official. Further, the ombudsman does not participate in the evaluation of proposals, the source selection process, or the adjudication of protests or formal contract disputes. The ombudsman may refer the interested party to another official who can resolve the concern.
2. Before consulting with an ombudsman, interested parties must first address their concerns, issues, disagreements, and/or recommendations to the contracting officer for resolution. Consulting an ombudsman does not alter or postpone the timelines for any other processes (e.g., agency level bid protests, GAO bid protests, requests for debriefings, employee-employer actions, contests of OMB Circular A-76 competition performance decisions).
3. If resolution cannot be made by the contracting officer, the interested party may contact the ombudsman, [Insert names, addresses, telephone numbers, facsimile numbers, and e-mail addresses of Center/MAJCOM/FLDCOM/DRU/DAFRCO ombudsman/ombudsmen]. Concerns, issues, disagreements, and recommendations that cannot be resolved at the Center/MAJCOM/FLDCOM/DRU ombudsman level, may be brought by the interested party for further consideration to the Department of the Air Force ombudsman, Associate Deputy Assistant Secretary (ADAS) (Contracting), SAF/AQC, 1060 Air Force Pentagon, Washington DC 20330-1060, phone number (571) 256-2395, facsimile number (571) 256-2431.
4. The ombudsman has no authority to render a decision that binds the agency.

5. Do not contact the ombudsman to request copies of the solicitation, verify offer due date, or clarify technical requirements. Such inquiries shall be directed to the contracting officer.

OCI Verbiage

In accordance with [RFO 9.507-2](#), insert *Organizational Conflict of Interest* verbiage, substantially as written, in the award (SOW/PWS/attachment) when the contractor's eligibility for future prime contract or subcontract awards shall be restricted because of services being provided as stated in [RFO 9.505-1 through -4](#).

Insert the basic verbiage when the contractor will be providing systems engineering and/or technical direction. See [RFO 9.505-1](#).

Alternate I verbiage

When the contractor will be preparing specifications or work statements. See [RFO 9.505-2](#).

Alternate II verbiage

When the contractor will be providing technical evaluation or advisory and assistance services. See [RFO 9.505-3](#).

Alternate III verbiage

When the contractor will be obtaining access to proprietary information. See [RFO 9.505-4](#).

Alternate IV verbiage

When the contract is a task ordering contract and when more than one system is supported. The contracting officer may modify Alternate IV to include a list of systems for which task orders may be issued and indicate which organizational conflict of interest shall apply.

Alternate V verbiage

When the contract provides for delivery orders. The contracting officer shall indicate in each delivery order which organizational conflict of interest shall apply.

Alternate VI verbiage

When it is necessary to have the restrictions of this clause included in all or some subcontracts, teaming arrangements, and other agencies calling for performance of work related to the contract.

Verbiage

ORGANIZATIONAL CONFLICT OF INTEREST

(a) The following restrictions and definitions apply to prevent conflicting roles which may bias the Contractor's judgment or objectivity, or to preclude the Contractor from obtaining an unfair competitive advantage in concurrent or future acquisitions.

(1) Descriptions or definitions:

"Contractor" means the business entity receiving the award of this contract, its parents, affiliates, divisions and subsidiaries.

"Development" means all efforts towards solution of broadly-defined problems. This may encompass research, evaluating technical feasibility, proof of design and test, or engineering of programs not yet approved for acquisition or operation.

"Proprietary Information" means all information designated as proprietary in accordance with law and regulation, and held in confidence or disclosed under restriction to prevent uncontrolled distribution. Examples include limited or restricted data, trade secrets, sensitive financial information, and computer software; and may appear in cost and pricing data or involve classified information.

"System" means the system that is the subject of this contract.

"System Life" means all phases of the system's development, production, or support.

"Systems Engineering" means preparing specifications, identifying and resolving interface problems, developing test requirements, evaluating test data, and supervising design.

"Technical Direction" means developing work statements, determining parameters, directing other Contractors' operations, or resolving technical controversies.

(2) Restrictions: The Contractor shall perform systems engineering and/or technical direction, but will not have overall contractual responsibility for the system's development, integration, assembly and checkout, or production. The parties recognize that the

Contractor shall occupy a highly influential and responsible position in determining the system's basic concepts and supervising their execution by other Contractors. The Contractor's judgment and recommendations must be objective, impartial, and independent. To avoid the prospect of the Contractor's judgment or recommendations being influenced by its own products or capabilities, it is agreed that the Contractor is precluded for the life of the system from award of a DoD contract to supply the system or any of its major components, and from acting as a subcontractor or consultant to a DoD supplier for the system or any of its major components.

ALTERNATE I verbiage. Either substitute paragraph (a)(2) of the basic verbiage with one or both of the following paragraphs, or use one or both in addition to the basic paragraph (a)(2). Use these paragraphs substantially as written.

(a)(2)(i) The Contractor shall prepare and submit complete specifications for non-developmental items to be used in a competitive acquisition. The Contractor shall not furnish these items to the DoD, either as a prime or subcontractor, for the duration of the initial production contract plus (insert a specific period of time or an expiration date).

(a)(2)(ii) The Contractor shall either prepare or assist in preparing a work statement for use in competitively acquiring the (identify the system or services), or provide material leading directly, predictably, and without delay to such a work statement. The Contractor may not supply (identify the services, the system, or the major components of the system) for a period (state the duration of the constraint, however, the duration of the initial production contract shall be the minimum), as either the prime or subcontractor unless it becomes the sole source, has participated in the design or development work, or more than one Contractor has participated in preparing the work statement.

ALTERNATE II verbiage. Either substitute paragraph (a)(2) of the basic verbiage with the following paragraph, or add the following in addition to the basic restriction. Renumber the paragraphs as needed if more than one restriction applies. Use this paragraph, substantially as written.

(a)(2) The Contractor shall participate in the technical evaluation of other Contractors' proposals or products. To ensure objectivity, the Contractor is precluded from award of any supply or service contract or subcontract for the system or its major components. This restriction shall be effective for (insert a definite period of time). This does not apply to other technical evaluations concerning the system.

ALTERNATE III verbiage. Add the following paragraph (b) to the basic verbiage substantially as written:

(b) The Contractor may gain access to proprietary information of other companies during contract performance. The Contractor agrees to enter into company-to-company agreements to: (1) protect another company's information from unauthorized use or disclosure for as long as it is considered proprietary by the other company; and, (2) to refrain from using the information for any purpose other than that for which it was furnished. For information purposes, the Contractor shall furnish copies of these agreements to the contracting officer. These agreements are not intended to protect information which is available to the Government or to the Contractor from other sources and furnished voluntarily without restriction.

ALTERNATE IV verbiage. Add the following paragraph (b) to the basic verbiage. If Alternate III is also used, renumber this to paragraph (c).

(b) The Contractor agrees to accept and to complete all issued task orders, and not to contract with Government prime Contractors or first-tier subcontractors in such a way as to create an organizational conflict of interest.

ALTERNATE V verbiage. Add the following paragraph (b) to the basic verbiage substantially as written. If more than one Alternate is used, renumber this paragraph accordingly.

(b) The Contractor agrees to accept and to complete issued delivery orders, provided that no new organizational conflicts of interest are created by the acceptance of that order. The contracting officer shall identify the organizational conflict of interest in each order. The Contractor shall not contract with Government prime Contractors or first-tier subcontractors in such a way as to create an organizational conflict of interest.

ALTERNATE VI verbiage. Add the following paragraph (b) to the basic verbiage substantially as written. If either Alternate III or IV or both are used, renumber this paragraph accordingly.

(b) The above restrictions shall be included in all subcontracts, teaming arrangements, and other agreements calling for performance of work which is subject to the organizational conflict of interest restrictions identified in this clause, unless excused in writing by the contracting officer.

POTENTIAL OCI VERBIAGE - MANDATORY

As prescribed in [RFO 9.507-1](#), insert in the solicitation/award (SOW/PWS/Section L/attachment) *Potential Organizational Conflict of Interest* verbiage, substantially as written.

POTENTIAL ORGANIZATIONAL CONFLICT OF INTEREST

(a) There is potential organizational conflict of interest (see RFO Subpart 9.5, Organizational and Consultant Conflicts of Interest) due to (state the nature of the proposed conflict). Accordingly:

(1) Restrictions are needed to ensure that (state the nature of the proposed restraint and the applicable time period).

(2) As a part of the proposal, the offeror shall provide the contracting officer with complete information of previous or ongoing work that is in any way associated with the contemplated acquisition.

(b) If award is made to the offeror, the resulting contract may include an organizational conflict of interest limitation applicable to subsequent Government work, at either a prime contract level, at any subcontract tier, or both. During evaluation of proposals, the Government may, after discussions with the offeror and consideration of ways to avoid the conflict of interest, insert a special provision in the resulting contract which shall disqualify the offeror from further consideration for award of future contracts.

(c) The organizational conflict of interest clause included in this solicitation may be modified or deleted during negotiations.

ALTERNATE VERBIAGE. At the discretion of the contracting officer, substitute the following paragraph (b) for paragraphs (b) and (c) in the basic provision:

(b) The organizational conflict of interest clause in this solicitation may not be modified or deleted.

Long Lead Limitation of Government Liability Verbiage - Mandatory

The verbiage or verbiage similar to [*Long Lead Limitation of Government Liability*](#), needs to be in all long-lead procurement solicitations/contracts initiated with advance procurement funds.

**Insert the verbiage below or similar verbiage in the solicitation/award
(SOW/PWS/attachment):**

LONG LEAD LIMITATION OF GOVERNMENT LIABILITY

- a) In performing this contract, the contractor is not authorized to make expenditures or incur obligations exceeding \$[insert dollar amount].
- b) The maximum amount for which the Government shall be liable if this contract is terminated (i.e., costs already incurred and those associated with termination) is \$[insert dollar amount].
- c) The contractor shall notify the contracting officer in writing whenever there is reason to believe that, within the next 60 days, the costs expected to be incurred under this contract, when added to all costs previously incurred, will exceed 75 percent of the total amount allotted to the contract by the Government. The notice shall state the estimated amount of additional funds required to continue performance for the specified schedule period, limited by the not-to-exceed contract value.
- d) Sixty days before the end of the specified schedule period, the contractor shall give notice to the contracting officer of the estimated amount of additional funds required to continue long lead contract performance, when the funds will be needed, and any agreed to extension period specified in the Schedule.

ELIMINATION OF USE OF CLASS I OZONE DEPLETING SUBSTANCES (ODS)

Insert verbiage akin to the below to the solicitation/award (SOW/PWS/attachment) unless the requiring activity obtains approval IAW the [SUSTAINABLE PRODUCTS AND SERVICES section](#)

ELIMINATION OF USE OF CLASS I OZONE DEPLETING SUBSTANCES (ODS)

1. Contractors shall not:
 1. Provide any service or product with any specification, standard, drawing, or other document that requires the use of a Class I ODS in the test, operation, or maintenance of any system, subsystem, item, component, or process; or

- a. Provide any specification, standard, drawing, or other document that establishes a test, operation, or maintenance requirement that can only be met by use of a Class I ODS as part of this contract/order.
2. For the purposes of Department of the Air Force policy, the following products that are pure (i.e., they meet the relevant product specification identified in [AFI 32-7086\[AR2\]](#)) are Class I ODSs:
 - a. Halons: 1011, 1202, 1211, 1301, and 2402;
2. Chlorofluorocarbons (CFCs): CFC-11, CFC-12, CFC-13, CFC-111, CFC-112, CFC-113, CFC-114, CFC-115, CFC-211, CFC-212, CFC-213, CFC-214, CFC-215, CFC-216, and CFC-217, and the blends R-500, R-501, R-502, and R-503; and
 - a. Carbon Tetrachloride, Methyl Chloroform, and Methyl Bromide.

Health and Safety on Government Installations

The acquisition team may insert verbiage akin to the below in the solicitation/award (SOW/PWS/attachment), other than for construction, which require performance on a Government installation if needed.

Health and Safety on Government Installations

In performing work under this contract on a Government installation, the contractor shall:

1. Take all reasonable steps and precautions to prevent accidents and preserve the health and safety of contractor and Government personnel performing or in any way coming in contact with the performance of this contract; and
 - a. Take such additional immediate precautions as the contracting officer may reasonably require for health and safety purposes
2. The contracting officer may, by written order, direct Department of the Air Force Occupational Safety and Health (AFOSH) Standards and/or health/safety standards as may be required in the performance of this contract and any adjustments

resulting from such direction will be in accordance with the Changes clause of this contract.

3. Any violation of these health and safety rules and requirements, unless promptly corrected as directed by the contracting officer, shall be grounds for termination of this contract in accordance with the Default clause of this contract.

CONTRACTOR ACCESS TO DEPARTMENT OF THE AIR FORCE INSTALLATIONS

Does your solicitation or contract require contractor personnel to make frequent visits to or perform work on DAF installations?

If so, add verbiage akin to the below to the solicitation/award (SOW/PWS/attachment):

Contractor Access to Department of the Air Force Installations

- The contractor shall obtain base identification and vehicle passes, if required, for all contractor personnel who make frequent visits to or perform work on the Department of the Air Force installation(s) cited in the contract. Contractor personnel are required to wear or prominently display installation identification badges or contractor-furnished, contractor identification badges while visiting or performing work on the installation.
- The contractor shall submit a written request on company letterhead to the contracting officer listing the following: contract number, location of work site, start and stop dates, and names of employees and subcontractor employees needing access to the base. The letter will also specify the individual(s) authorized to sign for a request for base identification credentials or vehicle passes. The contracting officer will endorse the request and forward it to the issuing base pass and registration office or Security Forces for processing. When reporting to the registration office, the authorized contractor individual(s) should provide a valid driver's license, current vehicle registration, valid vehicle insurance certificate, and [*insert any additional requirements to comply with local security procedures*] to obtain a vehicle pass.

- During performance of the contract, the contractor shall be responsible for obtaining required identification for newly assigned personnel and for prompt return of credentials and vehicle passes for any employee who no longer requires access to the work site.
- When work under this contract requires unescorted entry to controlled or restricted areas, the contractor shall comply with *[insert any additional requirements to comply with [DAFI 31-101, Integrated Defense](#), and [DODMAN5200.02_DAFMAN 16-1405, Air Force Personnel Security Program](#)]* citing the appropriate paragraphs as applicable.
- Upon completion or termination of the contract or expiration of the identification passes, the prime contractor shall ensure that all base identification passes issued to employees and subcontractor employees are returned to the issuing office.
- The contractor shall provide an after-hours contact number or after-hours email in the Emergency Mass Notification System (EMNS) for each of their personnel, whose normal place of duty is on a DoD installation or within a DoD facility. The contractor shall comply with any additional requirements in DAFMAN 10-206 for emergency operational reporting. Foreign Nationals may participate and may remove themselves from the Emergency Mass Notification System at any time. To update information, personnel can access the globe icon on their system desktop screens and choose the “Access Self-Service” option.
- Failure to comply with these requirements may result in withholding of final payment.

COMMON ACCESS CARDS (CAC) FOR CONTRACTOR PERSONNEL

Does your solicitation or contract require contractor personnel to meet one or both of the following criteria:

- **Require logical access to Department of Defense computer networks and systems in either the unclassified environment or the classified environment where authorized by governing security directives; and/or**
- **Perform work which requires the use of a Common Access Card (CAC) for installation entry control or physical access to facilities and buildings.**

If so, add verbiage akin to the below to the solicitation/award (SOW/PWS/attachment):

Common Access Cards (CAC) for Contractor Personnel

- For installation(s)/location(s) cited in the contract, contractors shall ensure Common Access Cards (CACs) are obtained by all contract or subcontract personnel who meet one or both of the following criteria:
 - Require logical access to Department of Defense computer networks and systems in either:
 - the unclassified environment; or
 - the classified environment where authorized by governing security directives.
 - Perform work, which requires the use of a CAC for installation entry control or physical access to facilities and buildings.
- Contractors and their personnel shall use the following procedures to obtain CACs:
 - Contractors shall provide a listing of personnel who require a CAC to the contracting officer. The government will provide the contractor instruction on how to complete the Contractor Verification System (CVS) application and then notify the contractor when approved.
 - Contractor personnel shall obtain a CAC from the nearest Real Time Automated Personnel Identification Documentation System (RAPIDS) Issuing Facility (typically the local Military Personnel Flight (MPF)).
- While visiting or performing work on installation(s)/location(s), contractor personnel shall wear or prominently display the CAC as required by the governing local policy.
- During the performance period of the contract, the contractor shall:
 - Within 7 working days of any changes to the listing of the contract personnel authorized a CAC, provide an updated listing to the contracting officer who will provide the updated listing to the authorizing government official;
 - Return CACs in accordance with local policy/directives within 7 working days of a change in status for contractor personnel who no longer require logical or physical access;

- Return CACs in accordance with local policy/directives within 7 working days following a CACs expiration date; and
- Report lost or stolen CACs in accordance with local policy/directives.
- Within 7 working days following completion/termination of the contract, the contractor shall return all CACs issued to their personnel to the issuing office or the location specified by local policy/directives.
- Failure to comply with these requirements may result in withholding of final payment.